

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sophia Bernhardt	Team: Team # 8	CCRB Case #: 200301006	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 02/08/2003 1:00 AM	Location of Incident: c/o § 87(2)(b) & § 87(2)(b)	Precinct: 47	18 Mo. SOL 8/8/2004	EO SOL 8/8/2004	
Date/Time CV Reported Sun, 02/09/2003 5:57 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/10/2003 11:45 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Trevor Dennin	01322	926756	047 PCT
2. POM Michael Mchugh	09788	925715	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Barahona	03030	926544	047 PCT
2. POF Fadila Metanovic	12278	926428	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Trevor Dennin	Discourtesy: PO Trevor Dennin spoke obscenely and rudely to § 87(2)(b) § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.POM Trevor Dennin	Force: PO Trevor Dennin used physical force against § 87(2)(b)	§ 87(2)(b)
C.POM Michael Mchugh	Abuse: PO Michael McHugh failed to obtain care for dependent child § 87(2)(b) § 87(2)(b)	§ 87(2)(b)

Synopsis

On February 8, 2003, § 87(2)(b) § 87(2) who was § 87(2)(b) pregnant, went to a gas station at § 87(2)(b) and § 87(2)(b) in the Bronx at approximately 12:30 AM. § 87(2)(b) § 87(2) was accompanied by § 87(2)(b) her § 87(2)(b) son. § 87(2)(b) § 87(2) became involved in a dispute with the gas station attendant, and the police were called. Police Officers Trevor Dennin, Daniel Barahona, Michael McHugh and Fadila Metanovic of the 47th Precinct responded to the scene. The officers told § 87(2)(b) § 87(2) to leave the scene, but she refused. Officer Dennin began to arrest § 87(2)(b) § 87(2) and she resisted arrest. Officer Dennin brought § 87(2)(b) § 87(2) forcibly to the ground on her stomach and she was handcuffed on the ground. She was then transported to the 47th Precinct, where she was issued a summons § 87(2)(a) 160.50. Her son was not taken into custody, and went home on his own. Two days later, § 87(2)(b) § 87(2) called the CCRB to file a complaint. She complained that Officer Dennin had used excessive force and that the officers should not have left her son alone at the scene. § 87(2)(b) § 87(2) further alleged that Officer Dennin spoke rudely to both her and her son and used profanity. § 87(2)(a) PHL §18(6)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) § 87(2)(b)

On February 23, 2003, § 87(2)(b) § 87(2)(b) was interviewed at the CCRB. (Encl. 9) § 87(2)(b) § 87(2)(b) an accountant, is a § 87(2)(b) African-American female. At the time of the incident, she was approximately § 87(2)(b) pregnant and was 5'3" and 208 pounds. (See photo, encl. 11) § 87(2)(b) § 87(2)(b) stated that on February 7, 2003, her husband § 87(2)(b) § 87(2)(b) came home from work at around midnight. § 87(2)(b) § 87(2)(b) complained that on his way home, he had stopped at a nearby gas station at § 87(2)(b) and § 87(2)(b) to buy cigarettes. § 87(2)(b) § 87(2)(b) had paid for the cigarettes, but the store clerk in the gas station had not given § 87(2)(b) § 87(2)(b) the cigarettes he paid for. When § 87(2)(b) § 87(2)(b) pointed out the problem, the store clerk became upset and threatened to call the police. § 87(2)(b) § 87(2)(b) then left the scene and went home. When § 87(2)(b) § 87(2)(b) learned of the situation, she decided to go to the gas station and speak with the clerk on her husband's behalf. She stated in her interview that her husband is a very large, tall man, and she thought the clerk might be more reasonable if approached by § 87(2)(b) § 87(2)(b) rather than her husband. § 87(2)(b) § 87(2)(b) had been to the gas station many times, and was familiar with the clerk, later identified as § 87(2)(b) § 87(2)(b). § 87(2)(b) § 87(2)(b) walked to the gas station, which was approximately two blocks from her house, with her § 87(2)(b) § 87(2)(b) son § 87(2)(b) § 87(2)(b). She noted that the gas station is across the street from a car service, and that three vehicles from the car service were parked at the station: a red car, a two-tone brown car and a blue car.

§ 87(2)(b) § 87(2)(b) instructed her son to stand back by the gas pumps while she approached the window and explained the situation to § 87(2)(b) § 87(2)(b) replied that § 87(2)(b) § 87(2)(b) “ran away” from the scene. She threatened to call the police and then turned away from the window, refusing to continue the conversation. Meanwhile, other customers arrived at the gas station and wanted to make purchases, but § 87(2)(b) § 87(2)(b) refused to return to the window to speak to them. The other customers began banging and kicking the window to gain § 87(2)(b) § 87(2)(b)s attention. § 87(2)(b) § 87(2)(b) finally picked up the phone, and § 87(2)(b) § 87(2)(b) § 87(2)(b) assumed that she was calling the police.

A few minutes later, two marked police cars arrived at the scene. A white officer and an Asian officer, later identified as Officer Trevor Dennin and Officer Daniel Barahona, exited the first vehicle. A white male officer and a white female officer, later identified as Officer Michael McHugh and Officer Fadila Metanovic, exited the second car. § 87(2)(b) § 87(2) explained the situation to Officer McHugh and Officer Metanovic while Officer Dennin and Officer Barahona went to speak with § 87(2)(b). After a few minutes, Officer Dennin and Officer Barahona returned and told § 87(2)(b) § 87(2) that she should just “forget about the whole thing.” Officer Barahona explained that the officers could not force the store clerk to repay § 87(2)(b) and added that § 87(2)(b) § 87(2) should not have left the scene originally. Officer Dennin then joined the conversation and used a loud and aggressive tone. He told § 87(2)(b) § 87(2) that she was “stupid” and that he was not going to “waste time” at the scene. Officer Dennin stated, “you’re crazy, Ma’am. You’re crazy.” (Allegation A) § 87(2)(b) § 87(2) argued with Officer Dennin, stating that she did not want to forget about the matter and that she did not like his arrogant tone. Officer Dennin replied that if § 87(2)(b) § 87(2) should go home and bring her husband back to the scene. § 87(2)(b) § 87(2) stated that if she left to get her husband, the officers would probably leave while she was gone. She asked Officer Dennin to come home with her, but he refused and repeated that he would wait at the gas station. The two continued to argue, and Officer Dennin eventually stated, “you know something, Ma’am? You’re under arrest.”

Officer Dennin started to handcuff § 87(2)(b) § 87(2) and placed the handcuffs on one of her wrists. The other officers began to approach, and § 87(2)(b) § 87(2)(b) son, § 87(2)(b) § 87(2) walked closer as well. Officer Dennin told § 87(2)(b) § 87(2) “Stay the fuck over there.” § 87(2)(b) § 87(2) told Officer Dennin that she did not use profanity with her son and she did not think that the officer should, either. Officer Dennin said, “stop acting like a bitch.” (Allegation A) § 87(2)(b) § 87(2) said, “Are you calling me a bitch?” Officer Metanovic said, “He didn’t call you a bitch, Ma’am. He said stop acting *like* a bitch.” Officer Dennin stepped around § 87(2)(b) § 87(2) to cuff her other hand, and § 87(2)(b) § 87(2) stated that she could not believe what was happening, especially since she was pregnant. She looked down, and saw Officer Dennin sidling his feet. She moved away from him a little to keep her balance, and Officer Dennin used his foot to trip § 87(2)(b) § 87(2) so that she fell to her knees and then to the ground. (Allegation B) § 87(2)(b) § 87(2) complained that she should not be kept lying on her stomach, and the officers stated, “lie on your side, then.” After a few moments, the officers lifted § 87(2)(b) § 87(2) onto her knees and then her feet, and she was walked to a patrol car. Officer Dennin told § 87(2)(b) § 87(2) “go home and tell your father that your mother’s at the 47th precinct.” (allegation C) § 87(2)(b) § 87(2) saw her son running home as she was driven away. § 87(2)(b) § 87(2) was taken to the 47th precinct, where she was issued a desk appearance ticket and released. The next day, she went to § 87(2)(b) § 87(2) for a sonogram and a check-up. § 87(2)(a) PHL § 18(6)

On June 4, 2003, § 87(2)(b) § 87(2) spoke to Inv. Sophia Bernhardt over the phone. (Encl. 27) She stated that § 87(2)(b) § 87(2) after her arrest, she went to her private doctor § 87(2)(a) PHL § 18(6)

On June 10, 2003, § 87(2)(b) § 87(2) was shown officer photographs at her home. (Encl. 9) § 87(2)(g) § 87(2)(b) § 87(2) did not recognize Officer Dennin. However, she did recognized Officer Barahona and stated that he was the partner of the officer who handcuffed her and spoke rudely to her. She recognized Officer Metanovic, but was unsure about Officer McHugh, stating that he looked somewhat like the taller white male officer at the scene who was partnered with the female officer, but she could not be sure.

§ 87(2)(b) § 87(2) On February 23, 2003, § 87(2)(b) § 87(2) was interviewed at the CCRB. (Encl. 10) § 87(2)(b) § 87(2) was § 87(2)(b) § 87(2) at the time of the incident, and a student at § 87(2)(b) § 87(2) in the Bronx. He was approximately 5’2” tall at the time of the incident with a childlike build (see photo, enc.) § 87(2)(b) § 87(2) was interviewed in the presence of his mother, § 87(2)(b) § 87(2) who was asked not to interrupt the

interview and did not do so. After the interview, § 87(2)(b) expressed astonishment at her son's testimony, noting that she remembered things differently.

§ 87(2)(b) stated that on February 8, 2003, he went with his mother to the Getty gas station at § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that after Officer Dennin and Officer Barahona had spoken with the gas station clerk, they told his mother to "let it go." When § 87(2)(b) refused to back down, stating that she wanted her money or her cigarettes, Officer Dennin became angry. He began insulting § 87(2)(b) stating, "Shut up. You're crazy. You're crazy and you're stupid." Officer Dennin stated further that there was no reason for a business to withhold merchandise from customers who had paid for it, and only a crazy person would make such an accusation. Officer Dennin told § 87(2)(b) to go get her husband. § 87(2)(b) asked Officer Dennin to come with her, explaining that she was afraid that if she left, the officers would leave before she returned. Officer Dennin refused to leave with § 87(2)(b) and the two continued to argue. Officer Dennin eventually told § 87(2)(b) "Just go," but she objected that she was not leaving without her money or the cigarettes. Officer Dennin told § 87(2)(b) to leave three or four more times, but she continued to argue with the officer.

Eventually Officer Dennin placed handcuffs on § 87(2)(b) right wrist. § 87(2)(b) started to walk over to his mother with the intent of pushing Officer Dennin away from her. Officer Dennin told § 87(2)(b) "Stay the fuck over there!" Officer McHugh stood in front of § 87(2)(b) and blocked his path. Officer McHugh did not touch § 87(2)(b) but simply stood between him and Officer Dennin. § 87(2)(b) objected to Officer Dennin's language and became "wild." She seemed to be trying to avoid being handcuffed by holding her left arm away from her body. § 87(2)(b) denied that his mother was flailing her arms, and stated that she was simply holding her arm away from the officer. Officer Dennin told § 87(2)(b) "stop acting like a bitch." § 87(2)(b) replied, "Are you calling me a bitch?" Officer Metanovic said, "He's not calling you a bitch, he's saying you're acting like one." Meanwhile, Officer McHugh questioned § 87(2)(b) asking him how old he was, where he lived, and where he went to school.

Officer Dennin told § 87(2)(b) to "drop," which § 87(2)(b) understood as a command for § 87(2)(b) to go down onto her knees. § 87(2)(b) stated several times that she was pregnant. Officer Dennin repeated his command to "drop" at least three times, but § 87(2)(b) did not kneel or bend down. Officer Dennin then hooked one of his feet around § 87(2)(b) feet in a deliberate motion, and § 87(2)(b) fell to the ground on her stomach. Officer Dennin, Officer Barahona and Officer Metanovic handcuffed § 87(2)(b) and all three officers knelt on the ground and searched § 87(2)(b) pockets. § 87(2)(b) stated, "I can't believe you have me on this cold ground and the icy floor." Officer Dennin stated, "get on your side, then." After a few minutes, the officers lifted § 87(2)(b) up and brought her over to the police car driven by Officer Dennin and Officer Barahona.

All of the officers got back inside their vehicles. Officer Metanovic tried to speak to § 87(2)(b) from her vehicle, but he did not want to talk to her and started running away towards his house. As he ran, Officer Dennin called after him, "tell your father to go to the 49th precinct." § 87(2)(b) went home and told his father what had happened, and they proceeded to the station house.

Results of Investigation

Officer Trevor Dennin

On April 15, 2003, Officer Trevor Dennin was interviewed at the CCRB. (Encl. 14) Officer Dennin, a white male with dark hair, was 5'9" and 190 pounds. He stated that on February 8, 2003, he was assigned to patrol sector EH with Officer Barahona. He was in uniform and in a marked patrol car. At approximately 12:30 AM, he responded to a job at a gas station on § 87(2)(b). When he reached the scene, he saw a female waiting there. The woman, later identified as § 87(2)(b), stated that earlier in the evening her husband had come to the gas station to buy cigarettes. He paid for the cigarettes with a ten-dollar bill, but the gas station attendant took his money and did not give him the cigarettes or his change. § 87(2)(b) stated that she wanted both the cigarettes and the change her husband was owed. Soon after Officer Dennin and Officer Barahona came to the scene, two more officers arrived from another patrol sector.

Officer Dennin asked § 87(2)(b) § 87(2) where her husband was. She replied that he was at home. Officer Dennin then asked why her husband was not at the scene. § 87(2)(b) § 87(2) replied that her husband had “trouble” with the police. Officer Dennin spoke to the gas station attendant, who stated that she had given § 87(2)(b) § 87(2)(b) husband his change and his cigarettes. Officer Dennin then went back outside and told § 87(2)(b) § 87(2) that she was not the complainant and her husband would have to be present. § 87(2)(b) § 87(2) replied that her husband would not be coming. She did not ask Officer Dennin or the other officers to come home with her and meet her husband there. She did not state that if she left to get her husband, the officers might leave while she was gone. Instead, § 87(2)(b) § 87(2) leaned against the glass window of the gas station and wrapped on the glass, stating that she wanted her money and her cigarettes. She became very loud and began yelling and cursing. Officer Dennin and the other officers told § 87(2)(b) § 87(2) several times that she would have to leave, but she did not do so. They also told her she would be arrested if she did not leave and § 87(2)(b) § 87(2) replied, “Fine, do what you gotta do.”

Officer Dennin stated that § 87(2)(b) § 87(2) did not seem to take him seriously, and was not obeying his lawful order to leave the scene. He decided to arrest her, and took out his handcuffs. Mrs. § 87(2)(b) § 87(2) began to move away, and kept her arms in front of her body to avoid being handcuffed. Officer Dennin brought § 87(2)(b) § 87(2) to the ground, but stated that he did not recall exactly how he did so, noting only that she went down onto her stomach. He denied any knowledge of § 87(2)(b) § 87(2)(b) pregnancy. § 87(2)(b) § 87(2) kept one of her arms beneath her and the officers struggled with her for a short time before successfully pulling her arm back and handcuffing her. Once § 87(2)(b) § 87(2) was handcuffed, she stopped struggling and stated that she was pregnant. § 87(2)(b) § 87(2) was then lifted up and placed in a patrol car. At some point during the arrest, § 87(2)(b) § 87(2)(b) son ran away from the scene. None of the officers ran after him or obtained care for him. Officer Dennin stated that he thought the child lived nearby, but he was not sure exactly where.

Officer Dennin and Officer Barahona drove § 87(2)(b) § 87(2) back to the precinct and issued her a summons. Her husband came to the precinct to meet her, and she was released. Officer Dennin denied using any profanity at the scene or calling § 87(2)(b) § 87(2) a “bitch” or saying that she was “crazy” or “stupid.” Officer Dennin denied any interaction with § 87(2)(b) § 87(2)(b) son and denied telling him to “stay the fuck over there.”

Officer Barahona

On June 18, 2003, Officer Daniel Barahona was interviewed at the CCRB.(Encl. 15) Officer Barahona, a § 87(2)(b) -year-old Hispanic male, was 5’9” and 175 pounds. § 87(2)(g) He added that after speaking with the gas station attendant, he spoke to § 87(2)(b) § 87(2) and asked her where her husband was. § 87(2)(b) § 87(2) stated that her husband didn’t get along with the police and had been arrested previously. In order to avoid further problems with the police, he had sent her to the gas station in his place. As she was speaking, § 87(2)(b) § 87(2) gestured across the street, and Officer Barahona assumed that she lived nearby and was gesturing to her home. Officer Barahona told § 87(2)(b) § 87(2) that settling the dispute would have been easier had § 87(2)(b) § 87(2) been present. However, he denied that there was any discussion regarding bring § 87(2)(b) § 87(2) to the scene or going to § 87(2)(b) § 87(2)(b) home to meet her husband.

Officer Barahona stated that § 87(2)(b) § 87(2) was asked to leave at least four times, but refused to do so and simply stood leaning against the gas station wall. Eventually Officer Dennin decided to arrest § 87(2)(b) § 87(2) and told her to put her hands behind her back. Officer Dennin started to place handcuffs on her, and § 87(2)(b) § 87(2) allowed Officer Dennin to cuff one of her wrists. When her son saw her being handcuffed, § 87(2)(b) § 87(2) took a step towards his mother. Officer McHugh and Officer Metanovic stepped in front of § 87(2)(b) § 87(2) to block his way but did not touch him. Officer Barahona denied that any officers told § 87(2)(b) § 87(2) to “stay the fuck over there.” § 87(2)(b) § 87(2) nevertheless became very agitated and started waving her arms, trying to pull her cuffed wrist away from Officer Dennin. Officer Dennin and Officer Barahona brought § 87(2)(b) § 87(2) down to her knees and then placed her on her stomach. § 87(2)(b) § 87(2) tried to tuck her free arm under her chest. Officer Barahona took hold of that arm and he and Officer Dennin eventually got the cuffs on. Officer Barahona denied that any officer used profanity or told § 87(2)(b) § 87(2) that she was “stupid” or “crazy.”

Once cuffed, § 87(2)(b) § 87(2) stopped struggling, but continued to scream and cry. She informed the officers that she was § 87(2)(b) pregnant. Officer Barahona stated that before § 87(2)(b) § 87(2) told them, he had not known she was pregnant. He could not visually discern that she was pregnant but rather thought that she was overweight. When asked what special precautions the police take when handling pregnant women, Officer Barahona stated that the police aren't specially trained for this situation, but that he would not have placed § 87(2)(b) § 87(2) on her stomach if he had known. After § 87(2)(b) § 87(2) stated that she was pregnant, the officers told her to get up from the ground. § 87(2)(b) § 87(2) replied, "You get me up. You put me here." Officer Dennin and Officer Barahona then lifted her up off the ground. Officer Barahona estimated that § 87(2)(b) § 87(2) was on the ground for 5-10 seconds.

The officers placed § 87(2)(b) § 87(2) in the back of their patrol car. When this was done, Officer Barahona looked up and saw that § 87(2)(b) had left the scene. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Officer Michael McHugh

Officer McHugh was interviewed at the CCRB on April 9, 2003. (Encl. 16) Officer McHugh, a § 87(2)(b) year-old white male, was 6'3" and 230 pounds with red hair and blue eyes. Officer McHugh brought a large laptop computer with him to his interview. The computer was turned on and made noise. When the interview was about to begin, Officer McHugh asked for a short delay because he was busy typing. Once the on-record interview began, Officer McHugh continued to look at the computer and did not turn it off. When he was asked to put the computer away, he initially objected and became defensive and hostile. Although he eventually agreed to turn the computer off, his hostility remained for the duration of the interview.

Officer McHugh stated that on February 8, 2003, he was assigned to patrol sector CD with Officer Metanovic. He was in uniform, and assigned to a marked RMP. Officer Metanovic was the operator, and Officer McHugh the recorder. At approximately 12:30 AM, Officer McHugh responded to a dispute job at § 87(2)(b) and § 87(2)(b) and found Officer Dennin and Officer Barahona already at the scene. The dispute involved an employee at a Gas Station and a female customer, later identified as § 87(2)(b) § 87(2) § 87(2)(b) § 87(2)(b) son was also present, and stood approximately ten feet away from his mother. Officer McHugh estimated that the son was between ten and thirteen years old. § 87(2)(b) § 87(2) explained the dispute, and Officer McHugh asked why § 87(2)(b) § 87(2) had left the scene. § 87(2)(b) § 87(2) replied that § 87(2)(b) § 87(2) had been arrested before and had problems with the police. She also commented that he was a black man, and the police would "just as soon lock him up" because he was out on parole. The dispute could not be resolved and the officers eventually instructed § 87(2)(b) § 87(2) to leave. She refused to do so, and became angry and irate. There was a nearby taxi stand and a crowd began to gather as § 87(2)(b) § 87(2) made a scene. At that point, Officer Barahona and Officer Dennin decided to place her under arrest § 87(2)(a) 160.50.

Officer Dennin and Officer Barahona tried to handcuff § 87(2)(b) § 87(2) and succeeded in handcuffing one of her wrists, but she resisted by flailing her other arm. An officer told § 87(2)(b) § 87(2) to get down on the ground, and she did so. Officer McHugh believed that § 87(2)(b) § 87(2) got down on the ground by choice. However, he added that his attention was taken away from § 87(2)(b) § 87(2) because while she was being handcuffed, her son § 87(2)(b) § 87(2) approached his mother, unzipping his jacket as he did so. Officer McHugh asked, "What are you doing?" and § 87(2)(b) § 87(2) ran across the street. Once § 87(2)(b) § 87(2) was on the ground, she lay on her stomach with one wrist cuffed and the other wrist beneath her. § 87(2)(b) § 87(2) stated while on the ground that she was pregnant. Officer McHugh had not realized she was pregnant until that point.

When asked why he did not obtain care for § 87(2)(b) § 87(2) Officer McHugh stated that § 87(2)(b) § 87(2) had run away from the scene. He added, "You want me to run after him?" Officer McHugh stated that he never asked for § 87(2)(b) § 87(2) s name or age. When asked to explain his decision to allow § 87(2)(b) § 87(2) to leave the scene, Officer McHugh stated that he assumed that § 87(2)(b) § 87(2) was going home, he had been told that § 87(2)(b) § 87(2)(b) husband was home, and he felt that § 87(2)(b) § 87(2) could get home on his own.

Officer Fadila Metanovic

On April 2, 2003, Officer Fadila Metanovic was interviewed at the CCRB. (Encl. 17) Officer Metanovic, a white female, was 5'7" and 150 pounds. She stated that when she arrived at the Getty gas station on the date of occurrence, Officer Dennin and Officer Barahona were already present dealing with a dispute between a customer and the gas station attendant. Officer Metanovic and her partner remained at the scene primarily as backup, and did not have much contact with either of the civilian parties. However, Officer McHugh did speak to the customer's son, although Officer Metanovic could not hear their conversation. The son appeared to be in his teens, but Officer Metanovic would not guess as to his exact age, stating only that he was between 10 and 20 years old. Meanwhile, the customer remained upset despite repeated requests from the officers that she calm down. The officers eventually told her to leave the scene, but she was irate and did not leave. Officer Dennin and Officer Barahona then informed Officer Metanovic that they were going to arrest the customer and issue her a summons at the station house.

Officer Dennin and Officer Barahona started to handcuff the customer, but she resisted by moving her body and refusing to place her arms behind her back. She was brought to the ground, but Officer Metanovic stated she could not recall exactly how the customer was taken to the group or how she was held. Officer Barahona and Officer Dennin placed the customer in handcuffs and then lifted her back up to her feet and brought her to their patrol car. Officer Metanovic stated that no force was used to hold the customer down, and that she was on the ground for only a few seconds. Officer Metanovic stated that it was evident from the customer's appearance that she was pregnant, but that the way in which she was taken to the ground did not place undue pressure on her stomach and that no force was used that could have threatened the pregnancy.

Officer Dennin and Officer Barahona drove the customer to the station house. Meanwhile, the customer's son ran off down the street, and no effort was made to restrain him or take him to the precinct. Officer Metanovic stated that she believed the customer and her son lived nearby and that the customer's son did not appear to need help getting home safely.

The Getty Gas Station and the Community Car Service

Shortly after this incident, the Getty Gas Station went out of business. Investigators Sophia Bernhardt and Monica Potts traveled to the scene on April 15, 2003, and found that the gas pumps had been removed and the gas station was in ruins. (Encl. 12-13) Garbage had been dumped on the premises, and there was no information regarding the former proprietor. The gas station had faced a row of small businesses consisting of a car service, a realty company, a carpet store and a restaurant. Of these four, all closed before midnight with the exception of the car service. The § 87(2)(b), owned and operated by § 87(2)(b) § 87(2)(b) was initially unwilling to provide any records as to which drivers and dispatchers were working on the date of the incident. Ultimately a subpoena was served to § 87(2)(b) personally and he provided a list of drivers and vehicles that had been dispatched by the car service on the date in question. (Encl. 28) The vehicles were checked in the DMV database, and 13 were found that matched § 87(2)(b) § 87(2)(b) description of a brown car, a blue car and a red car. Calls were placed to these 13 drivers, but no one was found with any knowledge of the incident. (Encl. 29)

Medical Records and References

§ 87(2)(a) PHL §18(6)

[REDACTED]

§ 87(2)(a) PHL §18(6)

§ 87(2)(a) PHL §18(6)

Office of the Chief Medical Examiner

§ 87(2)(a) PHL §18(6)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Communications Records

The Sprint radio communications indicate the following timeline (Encl. 23):

- 00:29 Report of a dispute at the Getty gas station at § 87(2)(b) and § 87(2)(b) between a gas station attendant and a customer. The gas station attendant, a female caller named § 87(2)(b) reports that a customer is trying to break the glass window of the gas station
- 00:33 Patrol Sector 47C takes the job.
- 00:38 Patrol Sector 47C arrives at the scene
- 00:48 Arrest made by Patrol Sector 47E and perpetrator transported to the station house.
- 00:55 Units arrive at station house
- 01:06 Patrol Sector 47C resumes patrol
- 02:07 Patrol Sector 47E resumes patrol

New York City Law Department

§ 87(2)(b) § 87(2)(b) has not filed a notice of claim against the city. (Encl. 27)

§ 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

Civilian CCRB Histories

This is § 87(2)(b) § 87(2)(b) first CCRB complaint. (Encl. 7)

MOS CCRB Histories

All of the officers at the scene are relatively new to the force with just 2 or 3 years of tenure. In 2001, Officer Dennin was found to have engaged in Other Misconduct by making a false official statement in CCRB case number 200106932. Officer McHugh has no prior substantiations that have led to charges, but he is named as a subject in pending CCRB case number 200306648. It should also be noted that Officer McHugh has been the subject of six CCRB complaints in his 3 years on the force. (Encl. 6)

Conclusions and Recommendations

Undisputed Facts

§ 87(2)(b) § 87(2)(b) has alleged that Officer Dennin forcibly brought her to the ground on her stomach and handcuffed her even after she told him that she was pregnant. She has alleged that Officer Dennin told her she was “crazy,” “stupid” and that she was “acting like a bitch.” She has further alleged that Officer Dennin told her son to stay “the fuck” away from the scene. Lastly, she has alleged that the officers improperly left her son at the Getty gas station in the middle of the night. § 87(2)(b) § 87(2)(b) son, § 87(2)(b) provided a similar account but added that his mother resisted arrest and did not comply with the officers’ initial order to leave the scene. The force used by the officers is not in dispute – Officer Dennin has admitted to bringing § 87(2)(b) § 87(2)(b) to the ground on her stomach. However, he has asserted that he did not know about § 87(2)(b) § 87(2)(b) pregnancy at the time, and that he was simply trying to lawfully arrest her and overcome her resistance. The other officer accounts concur with this version of events, although Officer Metanovic has stated that she did realize § 87(2)(b) § 87(2)(b) was pregnant from her appearance yet did not alert the other officers to the fact. § 87(2)(b), § 87(2)(g)

Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

He admitted that his mother resisted arrest and did not comply with the officers' orders. He admitted that when he approached Officer Dennin during his mother's arrest, he did so with the intent of pushing the officer away from his mother. He also admitted that when the officers finally called out to him from their cars, he did not want to talk to them and ran away.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Officer Identifications

The officer identities in this case are not disputed as each of the officers looks significantly different from the other three. (see photos enc.) The only two officers who share both race and gender characteristics are Officer Dennin and Officer McHugh.

Officer Dennin is 5'9" and 190 pounds and has black hair and brown eyes while Officer McHugh is 6'3" and 230 pounds with red hair and blue eyes.

Both he and his mother correctly identified which officers were partnered and attributed the same conduct - both the force and the use of profanity - to Officer Dennin. Furthermore, by Officer Dennin's own admission, he was the primary officer to bring [§ 87(2)(b)] [§ 87(2)] forcibly into custody and was the officer who brought her to the ground. [§ 87(2)(g)]

§ 87(2)(g)

§ 87(2)(g)

[illegible]

[REDACTED]

[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

Allegation B: Officer Dennin used physical force against § 87(2)(b) § 87(2)(b)

It is undisputed that Officer Dennin used force to bring § 87(2)(b) § 87(2)(b) to the ground on her stomach. Patrol Guide Procedure 203-11 states that police officers should “use minimum necessary force.”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) § 87(2)(b) was a large woman at 5’3” and approximately 208 pounds, and she was wearing a winter jacket at the time of the incident. § 87(2)(g)

§ 87(2)(g)

Allegation C: Officer Michael McHugh failed to obtain care for § 87(2)(b)

Patrol Guide Procedure 215.01 states that when faced with a child under the age of eighteen when the parent or guardian has been placed under arrest, officers are required to “inquire if a friend or relative will care for the dependent child.” In the event that no such care can be provided, officers are required to “Notify desk officer ...Process child as ‘Child Requiring Shelter’... and prepare and Aided Worksheet.” (Encl.) It is undisputed that none of these tasks were completed. § 87(2)(g)

§ 87(2)(g) [Redacted text block]

It is undisputed that the officers at the scene did not obtain care for § 87(2)(b) but left him unsupervised at a gas station in the middle of the night. § 87(2)(g) [Redacted text block]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: